

24STCV32719 24STCV32719

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Case Number: 24STCV32719 Hearing Date: August 6, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

ANGELICA GARCIA,

Plaintiff,

vs.

LOS ANGELES UNIFIED SCHOOL DISTRICT, et al.,

Defendants.

Case No.:

24STCV32719

Hearing Date:

August 6, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT'S MOTION FOR LEAVE TO
FILE CROSS COMPLAINT AGAINST DIGNITY COMMUNITY CARE

AND RELATED CROSS-ACTION

Background

On December 11, 2024, Plaintiff

Angelica Garcia ("Plaintiff") filed a complaint against Defendants Los Angeles Unified School District, City of Los Angeles, County of Los Angeles, State of California, and California Department of Transportation, asserting a cause of action for premises liability.

On July 3, 2025, City of Los Angeles (the "City") filed

a cross-complaint against Roes 1-10 for (1) indemnification, (2) apportionment of fault, and (3) declaratory relief. On October 2, 2025, the City filed an amendment to the cross-complaint, naming Los Angeles Unified School District ("LAUSD") as Roe 1.

LAUSD now moves for leave

to file a cross-complaint against Dignity Community Care. No opposition was filed.

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Legal Standard

A party may either file

a cross-complaint before or concurrently with an answer to the complaint or at any time before the court sets a date for trial. (Code

Civ. Proc., § 428.50, subds. (a)-(b).) If a party neglects to timely file their

cross-complaint, they must obtain leave of the court, which "may be granted in the interest of justice at any time during the course of the action." (Code Civ. Proc., § 428.50, subd. (c).)

Code

of Civil Procedure section 428.10 provides that “[a] party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both” any cause of action they have (a) “against any of the parties who filed the complaint” or (b) “against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in [the] cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against [them] or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against” said party. “Although this statute is permissive in its terms, in some circumstances a party must assert a cause of action in a cross-complaint or lose the right to assert that cause of action altogether.” ((K.R.L. Partnership v. Superior Court (2004) 120 Cal.App.4th 490, 498.)

Discussion

LAUSD seeks leave to file a cross-complaint against Dignity Community Care. The proposed cross-complaint alleges three causes of action for (1) express indemnity, (2) breach of contract, (3) declaratory relief, (4) implied indemnity pursuant to C.C.P. 1021.6, (5) contribution, and (6) apportionment. (See Ex. 8.)

LAUSD’s counsel attests, inter alia, that “[o]n December 11, 2024, Plaintiff, Angelica Garcia, filed her Complaint for Dangerous Condition of Public Property and Premises Liability, alleging injuries sustained when she tripped on an empty tree well and fell while walking with a stroller on the sidewalk at or near 240 Venice Blvd., Los Angeles, CA 90015 on January 25, 2024.” (Broce Decl., ¶ 3.) “During discovery and investigation, it was found that a Ground Lease Agreement between LAUSD as landlord, and Maguire Thomas Partners-17th & Grand as tenant, was signed on Sept. 7, 1989, and Maguire Thomas Partners-17th & Grand as lessee was responsible for maintaining and operating the facilities during the term of the lease.” (Broce Decl., ¶ 5, Ex. 3.) “It was later found that covenant agreement 1990 between LAUSD and The City of Los Angeles of Feb. 22, 1991, was effective, in which LAUSD certified to be the owner of the subject property, and agreed to indemnify and hold harmless The City of Los Angeles and to maintain, remove, replace all tree well covers/sidewalk.” (Broce Decl., ¶ 6, Ex. 4.) “On January

27, 2026, a tender request from The City of Los Angeles was accepted by LAUSD,” and “[o]n February 17, 2026, a substitution of attorney for The City of Los Angeles was filed with this court.” (Broce Decl., ¶¶ 7-8, Ex. 5.)

LAUSD’s counsel further

explains that “[a]fter the representation of The City of Los Angeles was assumed by defense counsel of record, a Ground Lease Agreement Assumption by Dignity Community Care as assignee, from Maguire Partners 17th & Grand, LLC as assignor, signed on Oct 13, 2021, under which Dignity Community Care is under possession of the subject property and is obligated to indemnify, defend and hold the Los Angeles Unified School District harmless from and against any liability or expense growing out of or incurred by reason of or in connection with any damage or injury to persons or property in or about the premises or improvements, was discovered. Such assumption also required Dignity Community Care to maintain comprehensive general liability insurance, naming the Los Angeles Unified School District as an additional insured.” (Broce Decl., ¶ 9, Ex. 6.) “On March 4, 2026, a tender of the defense of LAUSD and City of Los Angeles was sent to Dignity Community Care pursuant to the terms of the ground lease agreement and Dignity Community Care’s assumption of the ground lease agreement from Maguire Partners — 17th & Grand, LLC;” however, “[t]o the date of filing this motion, no response has been received from Dignity Community Care regarding LAUSD’s tender request.” (Broce Decl., ¶¶ 10-11, Ex. 7.)

LAUSD asserts that “[t]he

proposed cross complaint arises out of the same transaction, occurrence, or series of transactions or occurrences as those in plaintiff’s Complaint.”

(Mot., 6:24-25.) LAUSD explains that its “Cross-complaint arises from a Ground Lease Agreement between LAUSD and Maguire Thomas Partners-17th & Grand, and a Ground Lease Agreement Assumption by Dignity Community Care from Maguire Partners 17th & Grand, LLC, wherein Dignity Community Care agreed to indemnify, defend and hold the Los Angeles Unified School District harmless from and against any liability or expense, including attorneys’ fees and costs of defense growing out of or incurred by reason of or in connection with any damage or injury to persons or property in or about the premises or improvements, and was required to maintain comprehensive general liability insurance, naming the Los Angeles Unified School District as an additional insured. LAUSD’s proposed cross complaint arises out of Dignity Community Care’s refusal to defend” LAUSD and the City. (Mot., 7:5-14.)

LAUSD demonstrates that the

proposed cross-complaint arises out of the same transaction and occurrence as Plaintiff's original complaint. LAUSD also demonstrates that allowing leave to file the cross-complaint is in the interests of justice because the indemnity language in the lease agreement was recently found. Based on the foregoing, and in light of the lack of opposition, the Court grants LAUSD's motion to leave to file the proposed cross-complaint.

Conclusion

Based on the foregoing, LAUSD's motion for leave to file its cross-complaint is GRANTED. The Court orders LAUSD to file and serve the proposed cross-complaint within 3 days of the date of this Order.

LAUSD is ordered to give notice of this Order.

DATED: August 6, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court